DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Internal Affairs

Complaints

Inspector of Police

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# INTERNAL AFFAIRS

## I. POLICY

It is the policy of this Department to investigate all complaints of alleged misconduct by this Department or its employees, and to equitably determine whether the allegations are valid or invalid and to take appropriate action.

## II. PROCEDURE

A. Any citizen or member of this Department may file a complaint alleging that the Department or a member of the Department has violated a Federal or State statute, a City ordinance, Department policy, or has committed an act of misconduct.

B. All complaints of misconduct will be documented on an Employee Conduct Review Form #OPD – F1015 and will be investigated by the Department.

C. Any complaint received by a non-supervisory employee will promptly be referred to a supervisor, and if available, the supervisor of the employee(s) in question.

## III. METHOD OF COMPLAINTS

A. All complaints, including those received by telephone, mail, email or the City's website, will be accepted. Complaints that are anonymous, unsigned, and from sources that request that their name remain confidential will also be investigated.

B. An Employee Conduct Review Form #OPD – F1015 will be completed by the person accepting the complaint.

C. A citizen complainant should be encouraged to assist in the completion of the Employee Conduct Review Form #OPD – F1015. If the complainant refuses, the supervisor will complete the form with information provided by the complainant.

D. If a complainant is reluctant to file the complaint at the Police Department, the supervisor will arrange to have the complaint accepted at a mutually agreeable location.

IV. INVESTIGATIONS

A. All investigative steps will be documented in detail. The complainant and all witnesses will be interviewed, and where appropriate, physical evidence will be gathered and preserved.

B. Minor violations of rules and regulations will be investigated by the shift commander or supervisor. The completed investigation and the shift commander's recommendation will then be forwarded through the chain of command to the Chief of Police for final disposition.

C. Serious allegations of misconduct that could result in discharge, suspension, demotion, or criminal charges being sought will be initially investigated by the shift commander. The Chief of Police will immediately be notified of these types of complaints. The Chief of Police will determine whether a complaint will be investigated as an administrative violation, or as a criminal matter.

D. Inspector of Police

The Deputy Chief of Police will act as the Inspector of Police and will be activated as needed by the Chief of Police. The Inspector of Police reports directly to the Chief of Police.

E. For allegations of corruption, brutality, improper response to resistance or aggression, civil rights violations or criminal misconduct, the Chief of Police may refer the investigation to the Inspector of Police who has the authority to report his/her findings directly to the Chief of Police.

F. The supervisor/commander investigating the complaint will contact the complainant and advise him/her that the complaint is being investigated and provide an explanation of the investigative process.

G. At the conclusion of the investigation, the complainant will be advised in writing of the disposition.

H. All complaint investigations will be completed within fifteen (15) working days. An extension request should be explained in writing and forwarded to the Inspector of Police.

V. ALLEGATIONS OF CRIMINAL MISCONDUCT

Allegations of criminal misconduct by Department members will take precedence over an administrative investigation. These will be handled as follows:

1. Will be treated as confidential and handled the same as any other criminal investigation.

2. Will be investigated by the Inspector of Police who may request the assistance of the Bureau of Investigations supervisor. The Chief of Police may request an outside agency to conduct an investigation if warranted.

3. The employee may or may not be notified of the investigation until it is concluded.

4. An employee formally charged with a felony or misdemeanor involving moral turpitude may, at the discretion of the Chief of Police, be administratively suspended or assigned to non-enforcement duties.

5. An employee convicted of a felony, or misdemeanor involving moral turpitude will be dismissed from the Department.

VI. EMPLOYEES' DUTIES AND RIGHTS

A. An employee under investigation for an administrative complaint will receive written notification of the complaint on an Employee Conduct Review Notification Form #OPD – F1086 or F1208. This notification will include a copy of the original complaint or a summary adequately listing the relevant facts, and the employees' rights and responsibilities relative to the investigation. This written notification will be made at least 24 hours prior to any interview of the officer.

B. All interviews of the involved employee(s) will be conducted while the employee is on duty, unless the seriousness of the investigation is such that an immediate interview is required.

C. Scope of Questioning During Interview.

1. An employee is required to answer all questions related to the performance of his/her official duties.

2. Refusal to comply with an order to answer such questions is a violation of Departmental rules which may subject the employee to further discipline, up to and including dismissal.

3. Any required self-incriminatory admission made during the interview may only be used in subsequent administrative proceedings and shall not be used against the employee in subsequent criminal proceedings.

D. Counsel is permitted at the interview.

E. Special Examinations

1. An employee under investigation may request a breathalyzer, blood, urine, psychological, polygraph, CVSA, or medical examination if it is believed that such an examination would be beneficial to his/her defense. The Department may require such examinations upon the direction of the Chief of Police.

2. The shift commander may direct an employee to submit to a breath, blood or urine test when a level of inebriation or drug usage is suspected.

3. Photographs of employees under investigation may be taken if deemed necessary upon direction of the Chief of Police.

4. If an identification line-up is solely for administrative purposes, and criminal prosecution is not anticipated, an employee can be required to participate in a line-up.

5. Property belonging to the Department is subject to inspection where there is a reasonable suspicion that evidence of work-related misconduct will be found therein. Property includes, but is not limited to, vehicles, desks, files and storage lockers.

6. The polygraph or CVSA examinations may be done by an outside agency.

7. An employee may be required to submit financial disclosure statements.

VII. SUSPENSIONS AND RELIEF FROM DUTY

A. A shift commander may order an employee relieved from duty if an employee is unfit for duty. The Chief of Police will be notified as soon as practical.

B. When there is evidence of serious misconduct reflecting upon the integrity of the accused or the Department, the Chief of Police may order an administrative suspension.

C. An employee on an administrative or disciplinary suspension shall not wear the uniform or insignia, nor carry any Department-issued weapons. The employee shall return all Department owned property, if required.

D. An employee on administrative suspension shall obey all reasonable rules, regulations, and orders that do not conflict with his/her rights as an accused.

VIII. DISPOSITIONS OF COMPLAINTS

The investigator shall consider all relevant documents, testimony and evidence in order to determine what had actually occurred. He/she shall prepare a summary report that provides a complete account of the situation. At the end of the report, the investigator shall state a CONCLUSION OF FACT for each allegation of misconduct. Upon receipt of a shift commander's investigation and recommendation, or upon completion of an internal investigation, the Chief of Police will determine the complaint disposition from among the following dispositions:

1. Unfounded - allegation is false and not factual.

2. Not Involved – the employee was not present at the time the alleged misconduct occurred.

3. Exonerated - the action complained of did occur, but the investigation disclosed that the actions were reasonable, lawful, and proper.

4. Not sustained - insufficient evidence available to either prove or disprove the allegation.

5. Complaint withdrawn - complainant withdrew the complaint.

6. Sustained - investigation disclosed sufficient evidence to support the allegation in the complaint.

The Employee Conduct Review Form #OPD – F1015 will be completed to reflect the Conclusion of Fact.

IX. REPORTS AND RECORDS

A. Pursuant to Section 610.021 (3) and (13), RSMo, all personnel records are closed to the extent permitted by Missouri law.

B. All records of complaint allegations and investigations are confidential. Inquiries concerning internal or personnel investigations will be referred to the Chief of Police.

C. A written or electronic record will be required on all disciplinary action. Department disciplinary records will be retained by the Office of the Chief of Police for a period of at least five (5) years following the termination or retirement of the employee.

D. The Chief of Police or Inspector of Police will:

1. Maintain a numerical log of all complaint investigations.

2. Maintain a secure and confidential record of all allegations of misconduct. Paper records will be securely stored in the office of the Chief of Police.

Electronic records will be classified as confidential, with access restricted, and securely stored in the Guardian Tracking program.

3. Review all completed investigations and periodically analyze complaints to identify trends or patterns developing within the Department or with individual officers that may require additional training or corrective action.

*This General Order supersedes all prior directives and orders inconsistent therewith.*

BY ORDER OF:

*Signature on File*
Beth M. Andreski
Chief of Police
Effective Date: 12/15/2009
Revised: 7/22/2016
Revised: 5/3/2018
Revised: 4/28/2020
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